

		116). None of the forms submitted by Coach Arneson for the field trip that were produced by either the District or Plaintiff show that Defendant Lutz intended to transport students. The Field Study-Teacher Request Form only stated that Lutz would supervise, not drive. (Friedman Decl., ¶ 19, Ex. 28). It is also unclear if Plaintiff is contending that the District did not enforce “Section 5: Athletics and Co-Curricular Transportation Guidelines”, which Plaintiff referenced in her AUMF. “Section 5: Athletics and Co-Curricular Transportation Guidelines” states that student-arranged self transport may occur if various conditions are met, which includes the following: “No district employee may assist with arranging student self-transportation, assigning carpools, etc. under any circumstances. Students and parents must arrange self-transportation on their own.” (AUMF 88). But based on Plaintiff’s evidence, the District was, at most, only aware that Coach Arneson and a parent completed a driver form. There is no evidence that the District -or any supervisory employee - had knowledge that Defendant Lutz would either be driving or taking part in any way of arranging carpool. Plaintiff also presents evidence that it failed to enforce policies relating to ensuring that its employees complete trainings. But as discussed above, the delinquency of three trainings Coronavirus 101, IPM (Integrated Pest Management), and Mandated Reporter cannot be said to have caused Lutz’s actions, particularly where Defendant Lutz <u>had</u> completed trainings for sexual misconduct and staff-to-student training. (SSUMF 8). Plaintiff’s contention that Defendant failed to enforce its own drug and alcohol policy and that “CUSD’s employees did not follow multiple policies that were already in place” is, as the District notes, one akin to strict liability. Plaintiff provided no evidence creating a triable issue as to whether the District failed to <u>enforce</u> its own policies, other than evidence of Lutz’s failure to timely complete the three trainings for Coronavirus 101, IPM (Integrated Pest Management), and Mandated Reporter. After Lutz’s misconduct and policy violations were reported, the District immediately began investigating and took action against Lutz, no further misconduct took place, and Lutz resigned. Accordingly, the court GRANTS summary judgment. Defendant CUSD shall give notice.
4	Johnson vs. General Motors LLC	Defendant General Motors’s unopposed motion to compel compliance with C.C.P. § 871.26 and request for sanctions is GRANTED.